

Leave to Amend: "In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action." *Gami v. Mullikin Medical Ctr.* (1993) 18 Cal.App.4th 870, 876. After a judgment on the pleadings is granted, the same standards apply in granting leave to amend as for demurrers and leave is routinely granted. See Code Civ. Proc., § 438(h); *Virginia G. v. ABC Unified Sch. Dist.* (1993) 15 Cal. App. 4th 1848, 1852 [holding that when a motion for judgment on the pleadings is granted, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment].) If leave to amend is granted, the party against whom the motion is granted must be given 30 days to file an amended pleading. (Code Civ. Proc., § 438(h)(2).) If, as Plaintiff represents, Plaintiff did present timely government claims as required by Gov. Code section 900 et seq., then there is a reasonable possibility that the Complaint can be amended to state a cause of action.

The Motion for Judgment on the Pleadings is **GRANTED** with leave to amend. Plaintiff has 30 days leave to amend from notice of entry of order. A proposed order has been lodged and will be modified.

IN RE: HARDING

CASE NUMBER: 26CV-0210051

Tentative Ruling on Petition for Change of Name: Petitioner Katie Anna Harding seeks to change her name to Katie Anna Smith. Petitioner also seeks to change the last name of her three minor children. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted.

Additionally, when a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). If the non-petitioning parent lives out of state, service may be accomplished by certified mail. CCP §§ 415.10 and 415.40. Here, the fathers are not listed in the Petition. However, three Proofs of Service were filed indicating that Eric Stock, Damien Harding, and Anthony Retamoza were served by mail at addresses in California. If these individuals are the fathers of the minors, they will need to be personally served.

An appearance by Petitioner is necessary on today's calendar to confirm the names of the fathers and to select a new hearing date. Petitioner will need to obtain an Amended Order to Show Cause with the new hearing date and effect personal service on each father no less than 30 days prior to the continued hearing date. Additionally, Petitioner will need to provide the original Certificate of Publication.

JONES, ET AL. VS. TAYLOR

CASE NUMBER: 22CV-0201290

Tentative Ruling on Motion for Reconsideration: Plaintiffs Tiffanie Jones, Kim Harmon, and Stephen Huston move for reconsideration of a ruling made on Defendant Sally Taylor's Motion to Terminate the Case on May 11, 2026. While the motion was timely filed per CCP § 1008, Plaintiffs have not complied with CCP § 1005(b) which requires that the moving papers be filed and served at least sixteen court days prior to the hearing. The motion was filed on May 18, 2026 for a hearing date on June 1, 2026. This is untimely. The Proof of Service contained within the motion does not reflect how or when the moving papers were served, is not signed, and not dated. The Motion for Reconsideration is **DENIED** for being filed untimely and because there is no Proof of Service indicating that Defendant was noticed with the motion. Plaintiffs did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are to prepare the Order.

MARTINEZ VS. PARSON

CASE NUMBER: 25CV-0208252

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 15, 2026 to Plaintiff Timoteo Martinez and counsel Legal Needs, APC for failure to timely serve Defendant as required by California Rules of Court, Rule 3.110(b). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on July 22, 2025 and no Proof of Service of Summons has been filed. Plaintiff filed a late response to the OSC explaining that Plaintiff is engaged in settlement discussions and is also working diligently to effectuate service. Plaintiff requests a 60-day continuance. The OSC is **DISCHARGED**. No sanctions will be imposed. However, the Court expects proof of service to be on file no later than the next review date. This matter is continued to **Monday, August 3, 2026 at 9:00 a.m. in Department 63** for review regarding status of service. **No appearances are necessary on today’s calendar.**

IN RE: MEIER

CASE NUMBER: 26CV-0210082

Tentative Ruling on Petition for Change of Name: Petitioner Denae Ann Meier seeks to change her name to Dean Ann Cortazzo. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

PEOPLE OF THE STATE OF CALIFORNIA VS. MCCON

CASE NUMBER: 25CVG-02609

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant United States Fire Insurance moves to set aside summary judgment, discharge forfeiture, and exonerate bail. No opposition has been filed. A nearly identical Motion was filed in this matter on January 27, 2026. It was on calendar for hearing on February 23, 2026 and again on April 27, 2026. Both times, the Court informed Defendant that personal service on the County was necessary in order for the motion to proceed. The Motion was denied without prejudice. Defendant filed this Motion on May 6, 2026. There is no proof of service indicating that the County has been personally served. The motion is **DENIED** without prejudice. The proposed order will be modified.

PONCIANO, ET AL. VS. MARX, ET AL.

CASE NUMBER: CVCV20-0194371

Tentative Ruling on Motion for a New Trial: Defendants move for a new jury trial. Plaintiffs oppose the motion.

A jury trial as to damages ended in a verdict for Plaintiffs on January 15, 2026. Judgment was entered on March 30, 2026. Defendants filed the present Second Motion for a New Trial on May 1, 2026. Notice of Entry of Judgment was filed on April 17, 2026. As a preliminary matter, the motion was timely made per CCP § 659(a)(2). The burden of proof is on the moving party who must establish their position by a preponderance of the evidence. *Price v. Hibbs* (1964) 225 Cal. App. 2d 209, 215.

Merits. The grounds upon which a verdict may be vacated are enumerated in CCP § 657 which reads, in part:

The verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

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